

26VECV00783 26VECV00783

County: los-angeles

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Tentative Ruling

Lavie v. Polaris, Case no. 26VECV00783

Hearing date September 8, 2026

Plaintiff

Lavie's Motion to Compel Deposition of Defendant Polaris' PMK

Plaintiff

Lavie sues defendant Polaris Industries, Inc., alleging violations of the Song-Beverly Act. Plaintiff moves to compel the deposition of defendant's PMK and for monetary sanctions. Defendant opposes.

Service

of a deposition notice obligates a party to attend and testify. Code Civ. Proc. §2025.280. "If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it... the party giving the notice may move for an order compelling the deponent's attendance..." Code Civ. Proc. §2025.450(a).

Plaintiff

attempted to informally obtain deposition dates (Decl. Shayesteh, paras. 4-5) and served a deposition notice on 7/6/26 for 7/20/26. Id. at para. 6, exh. 1. The notice identified 34 matters for examination and 16 categories of documents for production. Id.

Defendant's

objection on 7/15/26 (Decl. Shayesteh, para. 8, exh. 2) consisted of 12 general objections to the notice and did not specify which categories of examination or documentation were subject to objection. Defendant did not offer alternative dates or respond to multiple follow-up meet-and-confer emails. Id., paras. 12-13, exhs. 3-4.

Defendant

argues the motion is premature, and plaintiff "served a unilateral notice for deposition... without first properly meeting and conferring with Polaris." Opp., 1:28–2:2. This is not well-taken. Defense counsel concedes plaintiff reached out to confer regarding potential dates prior to serving the deposition notice (Decl. Rabin, para. 5) and followed up after defendant served objections. Id. at para. 11. Defense counsel does not state alternative dates or responses to the meet-and-confer efforts were provided. Failing to respond to meet-and-confer efforts or provide alternative dates necessitated this motion; an order compelling the deposition of defendant's PMK and awarding sanctions against defendant and counsel is warranted.

Plaintiff

requests sanctions of \$6,520. Decl. Shayesteh, para. 16. This is unreasonable for a rote discovery motion. Plaintiff's reasonable requested hourly rate is \$475/hour. Id. Plaintiff requests 4.3 hours for drafting, 3.4 hours for separate statement, 1.8 hours for declaration and 0.6 hours for proposed order drafting. Id. 10.1 hours is unreasonable in a rote discovery matter; the court awards 4 hours for drafting motion/separate statement/declaration. Plaintiff requests 1.4 hours for reviewing the opposition and 2.1 hours for reply. No reply was filed; the court awards .5 hours for review of the opposition. No hours are requested for hearing. The court awards \$60 in filing fees. Id.

GRANTED;

defendant to produce its PMK for deposition at a mutually agreeable date, time and place within 30 days. Sanctions of 4.5 hours x \$475, plus costs of \$60, payable, joint and several, against defendant and defense counsel, within 30 days.